

PLJ 2020 Lahore 555 (DB)

[Rawalpindi Bench Rawalpindi]

Present: ABID AZIZ SHEIKH AND SHAHID JAMIL KHAN, JJ.

HABIB BANK LTD.--Appellant

versus

ZAWAR HUSSAIN SHAH--Respondent

R.F.A. No. 26 of 2012, decided on 4.11.2020.

Financial Institutions (Recovery of Finances) Ordinance, 2001--

---Ss. 9(2) & 22--Bankers Book Evidence Act, 1891, S. 2(8)--Suit for recovery--Dismissed--Statement of account--Non-availability of date and name of manager of bank on statement of account--Non-speaking judgment--Challenge to--Suit filed by Bank was merely dismissed for reason that date and name of manager was not available on statement of account, hence not certified under Act--No finding has been given by Banking Court on leave application filed by respondent--Therefore, on face of it, impugned judgment is non-speaking and not sustainable--Appeal allowed. [Pp. 556 & 557] A, B & C

Ms. Moona Hussain, Advocate for Appellant-Bank.

Raja Haseeb Sultan, Advocate for Respondent.

Date of hearing: 4.11.2020.

ORDER

In this appeal, the appellant has challenged the judgment and decree dated 29.11.2011, passed by the learned Judge, Banking Court, Rawalpindi, whereby the suit filed by the appellant-Bank was dismissed being not maintainable on the sole ground that the statement of account attached with the plaint is not dated and name of the Manager is also not available there.

2. Learned counsel for the appellant-Bank submits that as per law settled by the learned Division Bench of this Court in the case of *Mst. Tasleem Fatima and others versus Bank of Punjab and others* (2017 CLD 552) and the learned Single Bench of this Court in the case of *The Bank of Punjab through Branch/Chief Manager versus Messrs Khan Unique Developers Pvt. Ltd. through Chief Executive Officer and 9 others* (2016 CLD 29), the statement of account, which is an electronic computer generated, does not need any signature or certificate as per Section 2(8) of the Banker's Book Evidence Act, 1891 (**Act**). Further submits that the learned Banking Court did not even decide the fate of the leave application before dismissing the suit of the appellant-Bank.

3. Learned counsel for the respondent, on the other hand, supported the impugned judgment and submits that as the requirement of Section 9(2) of the Financial Institutions (Recovery of Finances) Ordinance, 2001 (**Ordinance**) was not fulfilled, therefore, the suit was rightly dismissed.

4. Heard. Perusal of the impugned judgment shows that the suit filed by the appellant-Bank was merely dismissed for the reason that the date and name of the Manager was not available on the statement of account, hence not certified under the Act. However, the effect of the Electronic Transactions Ordinance, 2002 (**Ordinance**), which is discussed in the afore-noted judgments, was not considered in the impugned judgment. Further no finding has been given by the learned Banking Court on the leave application filed by the respondent. Therefore, on the face of it, the impugned judgment is non-speaking and not sustainable. Accordingly, this appeal is **allowed** and the impugned judgment and decree is set aside. The matter is remitted back to the learned Banking Court to decide the leave application of the respondent alongwith question of maintainability of main suit through a reasoned and speaking order.

5. As the matter pertains to the year 2010, learned Banking Court shall preferably decide the same within a period of four months strictly in accordance with law.

(Y.A.) Appeal allowed